



**ITEMS PARTICULAR TO ONE MANUFACTURER (BRAND-NAME)  
WHEN PLACED UNDER AN INDEFINITE DELIVERY INDEFINITE QUANTITY (IDIQ) CONTRACT  
FAR 16.505(a)(4) and 16.505(b)(2)(ii)**

---

**J&A-26-0105**

**1. Agency and Contracting Activity.**

The Department of Homeland Security (DHS), U.S. Immigration and Customs Enforcement (ICE), Office of Acquisition Management (OAQ) proposes to award an IDIQ delivery order on behalf of the Immigration and Customs Enforcement (ICE) Office of the Chief Information Officer (OCIO) resulting from a solicitation containing a brand-name specification.

**2. Nature and/or description of the action being approved.**

- (a) Name of the ICE, DHS, or Multiple-Agency Multiple Award Contract that the delivery/task order or modification is being placed under:

National Aeronautics and Space Administration (NASA) Solutions for Enterprise-Wide Procurement (SEWP) V

- (b) *This* This procurement will be open to competition among qualified Small Business *authorized resellers under NASA SEWP V Historically Underutilized Business Zones.*

- (c) Identify contract type and whether new action or modification:  
Firm-Fixed Price, New delivery Order under FAR 16.505

- (d) Dollar amount for this justification: \$ [REDACTED]

- (e) Title of the required brand-name manufacturer and product:  
[REDACTED]

**3. Description of Supplies/Services.**

- (a) ICE has a requirement in support of new hires and these product has a proven track record of operational reliability within ICE. The selection of this product is based on a combination of technical compatibility, operational efficiency, and cost-effectiveness, which are critical to ICE's mission. In addition, the performance is a great value at this price point compared to other manufacturers products and services that provide the greatest overall benefit in response to the requirement and are as follows:

- (b) The period of performance for this requirement will be six (6) months

| Period | Time       | Price         | Total         |
|--------|------------|---------------|---------------|
| Base   | [REDACTED] | \$ [REDACTED] | \$ [REDACTED] |



**ITEMS PARTICULAR TO ONE MANUFACTURER (BRAND-NAME)  
WHEN PLACED UNDER AN INDEFINITE DELIVERY INDEFINITE QUANTITY (IDIQ) CONTRACT  
FAR 16.505(a)(4) and 16.505(b)(2)(ii)**

---

**4. Statutory Exception and Rationale.**

**Exception:**

The specific exception for providing for brand-name awards under multiple award contracts is Federal Acquisition Regulation (FAR) Subpart 16.505(a)(4). An item peculiar to one manufacturer can be a particular brand-name, product, or a feature of a product peculiar to one manufacturer. A brand-name item, even if available on more than one contract, is an item peculiar to one manufacturer.

**Rationale:**

- (a) Market research (MR) was conducted Jan 15 – Feb 15, 2026 via general internet searches and email correspondence. During this research phase, products were evaluated by the ICE Team in terms of their capabilities and features to assess functionality within the ICE Information Technology (IT) infrastructure environment. ICE also reviewed contract holders on the DHS SSV NASA SEWP portal showing multiple small business vendors in the HUBZone socio-economic category are capable of providing this product.
- (b) The [REDACTED] printer is included on the ICE Approved Hardware list, confirming its compatibility and reliability within the ICE Information Technology (IT) infrastructure. A thorough comparative analysis of alternative printers was conducted to assess their suitability. The Canon image [REDACTED], while considered, is limited to a maximum print speed of 35 pages per minute (ppm) and has a lower duty cycle, which restricts its capacity for high-volume printing and may not meet ICE's operational demands. The Xerox B620DN Multilink offers similar performance to the HP model in terms of ppm and duty cycle, but its higher price point makes it less cost-effective for ICE's requirements.

ICE IT personnel have extensive experience configuring and managing security settings on HP printers, which provides significant operational advantages. This familiarity reduces the need for additional training and mitigates the risk of configuration errors that could compromise network security. Furthermore, HP printer drivers and associated software are fully compatible with ICE-imaged computers, ensuring that deployment can occur without the need for extensive customization or troubleshooting. This compatibility minimizes operational delays, reduces the risk of incurring additional costs, and ensures seamless integration into the ICE IT environment. Selecting the [REDACTED] printer supports uninterrupted mission operations by leveraging established processes, maintaining IT security standards, and optimizing cost efficiency. The competitor products do not meet ICE's requirements due to limitations in performance, higher costs, and lack of compatibility with existing IT infrastructure and workflows.

**5. Determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.**

The Contracting Officer determines that the anticipated price(s) will be fair and reasonable based on adequate price competition. Multiple NASA SEWP V contract holders provide the required brand name [REDACTED]. The Government has a reasonable expectation that at least 2 quotes will be received.



**ITEMS PARTICULAR TO ONE MANUFACTURER (BRAND-NAME)  
WHEN PLACED UNDER AN INDEFINITE DELIVERY INDEFINITE QUANTITY (IDIQ) CONTRACT  
FAR 16.505(a)(4) and 16.505(b)(2)(ii)**

---

**6. Any other facts supporting the justification.**

None

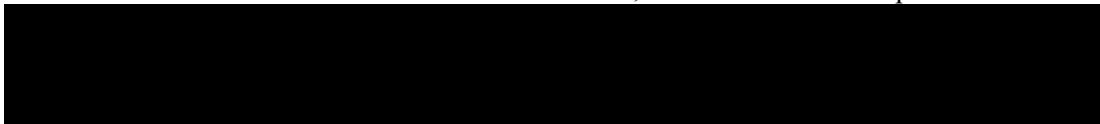
**7. A statement of the actions, if any, the agency may take to remove or overcome any barriers that led to the exception to fair opportunity before any subsequent acquisition for the supplies or services is made.**

It is not likely that ICE's network infrastructure will change before this Delivery Order is awarded or ends. HP Inc is an Original Equipment Manufacturer (OEM) and maintains a certified reseller network. OAQ will seek and solicit as many authorized resellers of the required HP Inc product as possible via the DHS mandated SSV NASA SEWP.

**8. If the total dollar value of this action exceeds \$30,000, OAQ intends to provide the justification and supporting documentation along with the solicitation to all (IDIQ) contract awardees under the [name the IDIQ functional category or tract being used] in accordance with FAR 16.505(a)(4)(iii)(A).**

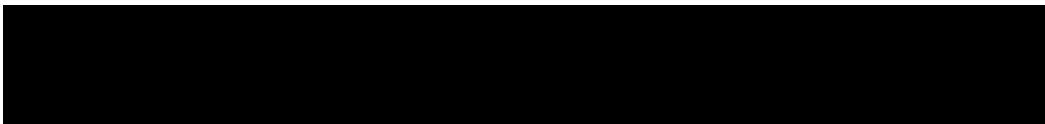
**9. Technical/Requirements Personnel Certification.**

I certify that this requirement meets the Government's minimum need and that the supporting data, which form a basis for Brand-Name Justification, are accurate and complete.



**10. Contracting Officer Certification and Approval.**

I hereby certify that the Brand-Name Justification is accurate and complete to the best of my knowledge and belief.



Contracting Officer